

STATE OF NEW YORK

4816--A

2025-2026 Regular Sessions

IN ASSEMBLY

February 6, 2025

Introduced by M. of A. O'PHARROW -- read once and referred to the Committee on Economic Development -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the general business law and the real property law, in relation to authorizing certain continuing education courses to be completed online

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Subdivision 1 of section 794 of the general business law,
2 as amended by chapter 301 of the laws of 2000, is amended to read as
3 follows:
4 1. Prior to the expiration of a certificate of registration and as a
5 condition of renewal, each hearing aid dispenser registered pursuant to
6 subdivision one of section seven hundred ninety of this article shall
7 submit documentation showing successful completion of twenty continuing
8 education credits through a course or courses approved by the secretary
9 in consultation with the advisory board, or, in relation to audiologists
10 licensed pursuant to article one hundred fifty-nine of the education
11 law, the office of the professions in the education department. Such
12 formal courses of learning shall include, but not be limited to, college
13 level of credit in non-credit courses, professional development
14 programs and technical sessions offered by national, state and local
15 professional associations and other organizations acceptable to the
16 secretary and any other organized educational and technical programs
17 acceptable to the secretary. The secretary may, in [~~his or her~~] such
18 secretary's discretion, and as needed to contribute to the health and
19 welfare of the public, require the completion of continuing education
20 courses in specific subjects to fulfill this mandatory continuing education
21 requirement. Courses shall be taken from a sponsor approved by the
22 secretary pursuant to regulations promulgated pursuant to this section.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [~~-~~] is old law to be omitted.

LBD08809-02-5

1 Courses may be completed online, provided that such online course meets
2 the requirements of this section and is approved by the secretary.

3 § 2. Paragraph (b) of subdivision 2 of section 791 of the general
4 business law, as added by chapter 599 of the laws of 1998, is amended to
5 read as follows:

6 (b) continuing education including but not limited to (i) the content
7 of such course of study, (ii) the procedures for approval of such course
8 of study ~~[and]~~, (iii) those individuals and organizations who may
9 permissibly offer such continuing education course or courses provided
10 for in section seven hundred ninety-four of this article, and (iv) the
11 format of such course of study when such course is given in an online
12 setting;

13 § 3. Section 444-q of the real property law is renumbered section
14 444-r and a new section 444-q is added to read as follows:

15 § 444-q. Continuing education. Continuing education courses required
16 for licensure pursuant to section four hundred forty-four-f of this
17 article may be completed online provided that such course is approved by
18 the secretary.

19 § 4. This act shall take effect on the thirtieth day after it shall
20 have become a law. Effective immediately, the addition, amendment
21 and/or repeal of any rule or regulation necessary for the implementation
22 of this act on its effective date are authorized to be made and
23 completed on or before such effective date.